

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 25-09
QVC, INC. AND CORNERSTONE BRANDS, INC.
v.
OCEAN NETWORK EXPRESS PTE. LTD.

AMENDED JOINT PROPOSED SCHEDULING ORDER

Pursuant to 46 C.F.R. § 502.141(h), Complainants QVC, Inc. and Cornerstone Brands, Inc. (collectively “QVC” or “Complainants”) and Respondent Ocean Network Express Pte. Ltd. (“ONE” or “Respondent”) (QVC collectively with ONE, the “Parties”), by their respective undersigned counsel, have conferred and submit this amended proposed discovery schedule in response to the Order On Proposed Scheduling Order. See Order, FMC Docket 25-09, Doc. No. 16.

The Parties have already exchanged the initial disclosures required by 46 C.F.R. § 502.141(b). The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 (i.e., no more than 20 depositions) and 502.145 (i.e., no more than 50 written interrogatories), respectively. Consistent with the Presiding Officer’s June 23, 2025 Initial Order in this case, the Parties intend to meet and confer concerning a stipulation and proposed order regarding treatment of confidential documents and information exchanged and used in this case. Pursuant to 46 C.F.R. § 502.64(a), the Parties also held a preliminary conference with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”) via a videoconference as follows:

- Respondent on August 26 2025; and
- Complainants on August 27, 2025.

Furthermore, the Parties propose the below amended schedule:

Event	Deadline
Parties to serve initial requests for production (“RFPs”) of documents and electronically stored information (“ESI”) and interrogatories	9/15/2025
Parties to serve objections and initial responses to initial RFPs	10/15/2025
Parties to serve objections and initial responses to initial interrogatories	10/15/2025
Submission of any unresolved disputes concerning initial RFPs and interrogatories and objections and responses thereto (after counsel confer directly)	10/28/2025
Substantial completion of productions of documents and ESI in response to initial RFPs	11/15/2025
Complete depositions of fact witnesses	12/15/2025
Last day to serve interrogatories, requests for admission, and RFPs	12/15/2025
Last day to respond to interrogatories, requests for admission, and RFPs	01/12/2026
Close of fact discovery	01/12/2026
Disclosure of initial expert reports, if any	12/23/2025
Disclosure of rebuttal expert reports, if any	01/06/2026
Complete expert depositions and all discovery	01/12/2026
Complainant’s initial brief, proposed findings of fact, and appendix	02/11/2026
Respondent’s opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	03/13/2026
Complainant’s reply and responses to proposed findings of fact	04/13/2026

The Parties still anticipate needing more than the 150 days permitted by 46. C.F.R. § 502.141(g) to complete discovery. Based on their collective experience with similar matters, the Parties expect that more time will be needed to fairly and sufficiently develop the record. In

particular, a substantial volume of documents will need to be considered, exchanged, and used as exhibits with the various witnesses. A more informed assessment can be made after the Parties exchange discovery demands, and agree on search terms and parameters for the production of documents. Accordingly, the Parties expect to seek an extension of the above schedule in due course, once they can better determine the volume of relevant documentation involved in this matter and the impact this will have on the discovery process.

For now, the Parties note that their initial disclosures have already identified 14 potential fact witnesses. The Parties also expect expert testimony of one liability and one damage expert per party. That alone will bring the number of witnesses to be scheduled and deposed to 18.

Dated: September 12, 2025

Respectfully submitted,

HUTH REYNOLDS LLP

MONTGOMERY MCCracken WALKER &
RHOADS LLP

/s/ J. Zachery Morris
Karl C. Huth
(212) 731-9333
huth@huthreynolds.com
Matthew J. Reynolds
(646) 872-9353
reynolds@huthreynolds.com
J. Zachery Morris
(332) 203-4571
zmorris@huthreynolds.com
Caden Otunu
(845) 423-0360
cotunu@huthreynolds.com
Jie Shi
(615) 739-4956
jshi@huthreynolds.com
41 Cannon Court
Huntington, NY 11743

/s/Kaspar Kielland
Timothy Semeno
Wook Chung
Robert O'Connor
Kaspar Kielland
Matteo Bonuzzi
437 Madison Avenue, 24th Floor
New York, New York 10022
Tel: 212 867 9500
tsemeno@mmwr.com
wchung@mmwr.com
kkielland@mmwr.com
mbonuzzi@mmwr.com

*Counsel for Respondent Ocean Network Express
Pte. Ltd.*

*Counsel for QVC, Inc. and Cornerstone
Brands, Inc.*